IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/78/CAA/2018

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

M/s. HMS Infotech Private Limited
(Transferor Company)

And

M/s Hotelogix India Private Limited
(Transferee Company)

Order delivered on 12th of April, 2018

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s): Mr. Naveen Kumar Murthi and G. V. Mohan Kumar, Counsels

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration is a joint Application No. CA/78/CAA/2018 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening, holding and conducting of the meeting of equity/preference shareholders, secured/unsecured

creditors in relation to the Transferor and Transferee Companies.

2. **M/s. HMS Infotech Private Limited**

i. The Transferor Company viz., M/s. HMS Infotech Private Limited has 29 equity shareholders and 22 preference shareholders. The lists of equity /preference shareholders are placed at pages 146 and 147 and 205 to 207 of the typed set filed with the Application. Out of 29 equity shareholders, 28 have given consent affidavits which constitute 99.62% of the equity shareholdings. Similarly, out of 22 preference shareholders, 21 have given consent affidavits which constitute 99.43% of the preference shareholdings. The consent affidavits given by the equity/preference shareholders are placed at pages 148 to 204 and 208 to 251 respectively of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of

equity/preference shareholders. Therefore, the meeting of the equity/preference shareholders of the Transferor Company is allowed to be dispensed with.

ii. There is one secured creditor in relation to the Transferor Company. The certificate issued by the Charted Accountant to this effect is placed at page 258 of the typed set filed with the Application. The consent Affidavit given by the sole secured creditor is placed at pages 259 and 260 of the typed set filed with the Application. Therefore, the meeting of the secured creditor is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

iii. There is no unsecured creditor in relation to the Transferor Company. However, there are 15 unsecured trade creditors in the Transferor Company. The certificate issued by the Charted Accountant to this effect is placed at page 263 of the typed set filed with the Application. The consent Affidavits given by the unsecured trade creditors are placed at pages 264 to 293 of the typed set filed with the Application.

Therefore, the meeting of the unsecured trade creditors are allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

3. **M/s. Hotelogix India Private Limited**

i. The Transferee Company viz., M/s. Hotelogix India Private Limited has 2 equity shareholders. The list of equity shareholders are placed at page 252 of the typed set filed with the Application. The consent affidavits given by the equity shareholders are placed at pages 253 to 257 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of equity shareholders. Therefore, the meeting of the equity shareholders of the Transferee Company is allowed to be dispensed with.

ii. There is no secured/unsecured creditor in relation to the Transferee Company. The certificate issued by

the Charted Accountant to this effect is placed at page 294 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authorities in relation to the Applicant Companies separately, and also notice to OL in relation to the Transferor Company with the direction to appoint Chartered Accountant on his own for filing reports. Since the Applicants are private limited companies, there is no requirement to issue notice to SEBI or other stock exchanges and CCI or other sectoral regulators. In case, the said statutory authorities are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with the supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication separately in the newspapers one in English "Business Standard" (Chennai Edition) and another in vernacular language "Maalai Malar" (Chennai Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30 days before filing the Company Petition(s). The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at the Registered Office of their respective companies. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Application is allowed. The Applicant Companies are directed to present the Petition(s) on or before 04.06.2018.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

P.ATHISTAMANI